

Asset Transfer Cases: Second Research

Additional Interstate Models for Post-Confiscation Transfer

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1 Purpose

This second note continues the first asset-transfer memo but shifts to **new interstate cases not already substantially covered in the project**. The focus remains on **actual post-confiscation or post-forfeiture transfers**, not merely freezing or seizure.

The main question is practical and Ukraine-oriented: **which legal structures have allowed one state to transfer criminally confiscated assets to another state or to a monitored public-benefit vehicle, and which of those structures could inform a future Ukraine model?**

This draft follows the same logic as the first memo:

- identify the accusation and the parties;
- trace the legal step that made transfer possible;
- identify the legal basis for the return;
- record how the returned assets were used;
- assess whether monitoring, conditionality, or a joint project made the transfer politically and legally workable.

2 Working Pattern

The strongest interstate return cases usually have four elements:

1. a **final forfeiture, confiscation, or remission decision** in the recovering state;
2. a **second allocation instrument** directing the assets to the receiving state or fund;
3. a **public-benefit use restriction** rather than an unrestricted treasury payment;
4. a **monitoring architecture** strong enough to answer misuse concerns.

For Ukraine, the most useful cases are therefore not simply large returns. They are cases where confiscated value was channeled through a **trust fund, monitored project vehicle, independent auditor, civil-society oversight mechanism, or multistate agreement**.

3 Interstate Case Matrix

Case	Accusation / predicate offense	Parties	Forum / decision date	Amount	Legal basis for confiscation / forfeiture	Legal basis for return	Recipient / use of funds	Monitoring / joint project	Why it matters for Ukraine
Switzerland -> Uzbekistan (Karimova)	Bribery and land laundering -> linked to telecom contracts involving Gulnara Karimova	Switzerland, Uzbekistan, UN	Frame-work agreement 11 Sep 2020; restitution agreement 16 Aug 2022	USD 131 million initially, plus future definitively confiscated assets	Swiss criminal proceedings and definitive confiscation	Switzerland-Uzbekistan restitution agreement; UN Multi-Partner Trust Fund	Benefit of population of Uzbekistan; health and social-development programming	UN trust fund governance; joint strategic bodies; civil-society consultative role	Best recent model for using a neutral international vehicle instead of direct budget transfer

Case	Accusation / predicate offense	Parties	Forum / decision date	Amount	Legal basis for confiscation / forfeiture	Legal basis for return	Recipient / use of funds	Monitoring / joint project	Why it matters for Ukraine
U.S. / Jersey -> Nigeria (Abacha proceeds 2020 tranche)	Embezzlement, misappropriation, extortion, laundering of Abacha proceeds	U.S., Jersey, Nigeria	D.D.C. forfeiture judgment 2014; trilateral agreement 3 Feb 2020; transfer 4 May 2020	USD 311.8 million transferred	U.S. civil forfeiture judgment enforced in Jersey	Trilateral repatriation agreement	Public-benefit projects in Nigeria	Safeguards in agreement; implementation and accountability conditions	Strong model for allied-jurisdiction enforcement of one state's forfeiture judgment
U.S. / UK -> Nigeria (Abacha, 2022 tranche)	Same Abacha corruption proceeds, with assets located in the UK	U.S., UK, Nigeria	D.D.C. forfeiture judgment 2014; U.S.-Nigeria agreement 23 Aug 2022; transfer 17 Nov 2022	Over USD 20.6 million transferred, from roughly USD 23 million forfeited	U.S. forfeiture judgment; UK enforcement cooperation	Bilateral U.S.-Nigeria repatriation agreement	Second Niger Bridge, Lagos-Ibadan Expressway, Abuja-Kano road	NSIA administration, independent audit, civil-society monitoring	Useful precedent for repeated repatriation under a prior forfeiture case
U.S. -> Nigeria (Alison Madueke / Aluko-Omolote)	Bribery in Nigerian oil contracts, laundering through U.S. assets including luxury real estate and yacht	U.S., Nigeria, World Bank trust-fund structure, IIJ	Agreement signed 10 Jan 2025	USD 52.88 million	U.S. forfeiture proceedings tied to corruption and laundering	U.S.-Nigeria transfer agreement; forfeiture-sharing authority under U.S. law	USD 50m for electrification through a World Bank trust fund; about USD 2.88m for IIJ rule-of-law and counter-terrorism work	World Bank oversight, auditing, publication requirements, external reporting	Very strong analogue for Ukraine because assets were split between reconstruction-style spending and institutional capacity-building
Jersey -> Kenya (Windward / Gichu Company Okemo)	Corruption proceeds linked to Kenya contracts awarded by Kenya Power and Lighting Company	Jersey, Kenya, UK, Switzerland	Jersey confiscation 24 Feb 2016; bilateral step 3 Mar 2017; FRACCK signed Dec 2018; ARA signed 28 Mar 2022	About GBP 3 million returned	Royal Court confiscation order after guilty plea by Windward Trading Ltd	Asset Recovery Agreement under FRACCK framework	Kenya's COVID-19 response; broader Vision 2030 development framing	FRACCK multilateral framework; asset-return principles agreed among partners	Strong precedent for framework-based asset return rather than one-off diplomacy
Jersey -> Mozambique (Frago)	Bribe proceeds linked to public-works contracts in Mozambique, hidden through Jersey trust structure	Jersey, Mozambique	Forfeiture proceedings under Jersey law; MoU signed 7 May 2024	Over GBP 829,500	Forfeiture of Assets (Civil Proceedings) (Jersey) Law 2018	Jersey-Mozambique Memorandum of Understanding	Building Mozambique's asset-recovery and anti-corruption institutions	Earmarked institutional uses; training and agency support	Useful for Ukraine if part of future returns is directed to enforcement and recovery institutions

Case	Accusation / predicate offense	Parties	Forum / decision date	Amount	Legal basis for confiscation / forfeiture	Legal basis for return	Recipient / use of funds	Monitoring / joint project	Why it matters for Ukraine
U.S. -> Kyr-gyz Re-public (Bakiyev)	Theft of state funds and corruption by former regime, traced into U.S. insider-trading case proceeds	U.S., Kyr-gyz Republic	EDNY forfeiture order; remission granted 4 Oct 2018; repatriation announced 26 Feb 2019	Approx. USD 4.5 million	Criminal forfeiture order in U.S. case; DOJ remission decision	Petition for remission granted by DOJ MLARS	Healthcare equipment, drinking-water facilities, anti-corruption and judicial-transparency projects	Government commitments on end use; public joint statement	Demonstrates a foreign state's use of remission to claim proceeds tied to stolen public funds

4 Priority Case Analysis

4.1 Switzerland -> Uzbekistan (Karimova)

4.1.1 Essence of the accusation

The case concerns **Gulnara Karimova**, daughter of former Uzbek president Islam Karimov. Swiss materials describe the assets as connected to criminal proceedings in Switzerland involving **illicitly acquired assets** and official statements tie the matter to corruption around the award of lucrative telecommunications contracts.¹²³

4.1.2 Parties

- **Confiscating state:** Switzerland
- **Receiving state:** Uzbekistan
- **Implementation vehicle:** UN Multi-Partner Trust Fund
- **Beneficiary:** population of Uzbekistan

4.1.3 Procedural path and operative decisions

1. Switzerland definitively confiscated an initial tranche of around **USD 131 million** in one of the Swiss criminal proceedings.⁴
2. On **11 September 2020**, Switzerland and Uzbekistan signed a **framework agreement** setting the principles and stages for restitution.⁵
3. On **16 August 2022**, they signed the legally binding **restitution agreement** after negotiations over governance and implementation.⁶
4. The assets were to be returned through a new **UN Multi-Partner Trust Fund**, not as a direct transfer into the Uzbek state budget.⁷⁸

4.1.4 Basis for return

¹Swiss FDFA, "Switzerland and Uzbekistan sign an agreement with a view to the restitution of confiscated assets", 11 Sep 2020, <https://www.eda.admin.ch/eda/en/fdfa/fdfa/aktuell/news.html/content/eda/en/meta/news/2020/9/11/80393>.

²Swiss FDFA, "Restitution of illicit assets: Switzerland and Uzbekistan sign agreement", 16 Aug 2022, <https://www.eda.admin.ch/eda/en/fdfa/fdfa/aktuell/news.html/content/eda/en/meta/news/2022/8/16/89949>.

³Swiss FDFA, "Upgrades to maternity units in Uzbekistan thanks to return of confiscated assets", 2025, <https://www.eda.admin.ch/en/upgrades-to-maternity-units-in-uzbekistan-thanks-to-return-of-confiscated-assets>.

⁴Swiss FDFA, "Switzerland and Uzbekistan sign an agreement with a view to the restitution of confiscated assets", 11 Sep 2020, <https://www.eda.admin.ch/eda/en/fdfa/fdfa/aktuell/news.html/content/eda/en/meta/news/2020/9/11/80393>.

⁵Swiss FDFA, "Switzerland and Uzbekistan sign an agreement with a view to the restitution of confiscated assets", 11 Sep 2020, <https://www.eda.admin.ch/eda/en/fdfa/fdfa/aktuell/news.html/content/eda/en/meta/news/2020/9/11/80393>.

⁶Swiss FDFA, "Restitution of illicit assets: Switzerland and Uzbekistan sign agreement", 16 Aug 2022, <https://www.eda.admin.ch/eda/en/fdfa/fdfa/aktuell/news.html/content/eda/en/meta/news/2022/8/16/89949>.

⁷Swiss FDFA, "Restitution of illicit assets: Switzerland and Uzbekistan sign agreement", 16 Aug 2022, <https://www.eda.admin.ch/eda/en/fdfa/fdfa/aktuell/news.html/content/eda/en/meta/news/2022/8/16/89949>.

⁸UN Multi-Partner Trust Fund Office, "Uzbekistan Vision 2030 Fund", accessed 7 Apr 2026, <https://mptf.undp.org/fund/uzb00>.

Element	Legal basis
Confiscation	Definitive confiscation in Swiss criminal proceedings
Transfer abroad	2020 framework agreement followed by 2022 restitution agreement
Restrictions on use	UN trust-fund architecture; SDG-oriented public-benefit projects; governance rules and consultative role for civil society

4.1.5 Use of returned assets / joint projects

Swiss and UN materials show the funds were designed to support the population of Uzbekistan through projects aligned with the UN Sustainable Development Cooperation Framework. Swiss follow-up reporting links the mechanism to **health-sector implementation**, including upgrades to maternity and neonatal care units and training of healthcare workers.⁹¹⁰¹¹

4.1.6 Why it matters for Ukraine

This is one of the strongest current models for Ukraine because it shows how a confiscating state can avoid the objection that funds should not be wired directly into a politically sensitive treasury account. The assets are instead routed through a **neutral international vehicle**, with joint governance and public-benefit restrictions.

4.1.7 Verification note

- Transfer mechanism verified: Yes
- Restitution agreement verified: Yes
- Use-of-funds track verified: Yes
- Judicial source gap: public Swiss court texts are less visible than the executive restitution materials

4.1.8 Sources

- Swiss FDFA, framework agreement, 11 Sep 2020¹²
- Swiss FDFA, negotiation progress, 14 Feb 2022¹³
- Swiss FDFA, restitution agreement, 16 Aug 2022¹⁴
- UN Multi-Partner Trust Fund for Uzbekistan¹⁵
- Swiss FDFA, health-project follow-up¹⁶

4.2 U.S. / Jersey -> Nigeria (Abacha, 2020 tranche)

4.2.1 Essence of the accusation

The U.S. and Jersey materials treat the funds as proceeds of the kleptocracy of **General Sani Abacha** and his co-conspirators. The allegations included **embezzlement, misappropriation, extortion, and laundering** of billions from Nigeria through the international financial system.¹⁷¹⁸

4.2.2 Parties

- **Forfeiting state:** United States
- **Enforcing jurisdiction for located assets:** Jersey
- **Recipient:** Federal Republic of Nigeria

⁹Swiss FDFA, "Restitution of illicit assets: Switzerland and Uzbekistan sign agreement", 16 Aug 2022, <https://www.eda.admin.ch/eda/en/fdfa/fdfa/aktuell/news.html/content/eda/en/meta/news/2022/8/16/89949>.

¹⁰UN Multi-Partner Trust Fund Office, "Uzbekistan Vision 2030 Fund", accessed 7 Apr 2026, <https://mptf.undp.org/fund/uzb00>.

¹¹Swiss FDFA, "Upgrades to maternity units in Uzbekistan thanks to return of confiscated assets", 2025, <https://www.eda.admin.ch/en/upgrades-to-maternity-units-in-uzbekistan-thanks-to-return-of-confiscated-assets>.

¹²Swiss FDFA, "Switzerland and Uzbekistan sign an agreement with a view to the restitution of confiscated assets", 11 Sep 2020, <https://www.eda.admin.ch/eda/en/fdfa/fdfa/aktuell/news.html/content/eda/en/meta/news/2020/9/11/80393>.

¹³Swiss FDFA, "Restitution of illicitly acquired assets: Progress of negotiations between Switzerland and Uzbekistan", 14 Feb 2022, <https://www.eda.admin.ch/eda/en/fdfa/fdfa/aktuell/newsuebersicht/2022/02/negotiations-switzerland-uzbekistan.html>.

¹⁴Swiss FDFA, "Restitution of illicit assets: Switzerland and Uzbekistan sign agreement", 16 Aug 2022, <https://www.eda.admin.ch/eda/en/fdfa/fdfa/aktuell/news.html/content/eda/en/meta/news/2022/8/16/89949>.

¹⁵UN Multi-Partner Trust Fund Office, "Uzbekistan Vision 2030 Fund", accessed 7 Apr 2026, <https://mptf.undp.org/fund/uzb00>.

¹⁶Swiss FDFA, "Upgrades to maternity units in Uzbekistan thanks to return of confiscated assets", 2025, <https://www.eda.admin.ch/en/upgrades-to-maternity-units-in-uzbekistan-thanks-to-return-of-confiscated-assets>.

¹⁷U.S. Department of Justice, "U.S. Enters into Trilateral Agreement with Nigeria and Jersey to Repatriate Over \$300 Million to Nigeria in Assets Stolen by Former Nigerian Dictator General Sani Abacha", 3 Feb 2020, <https://www.justice.gov/archives/opa/pr/us-enters-trilateral-agreement-nigeria-and-jersey-repatriate-over-300-million-nigeria-assets>.

¹⁸U.S. Department of Justice, "U.S. Repatriates over \$311.7 Million in Assets to the Nigerian People that were Stolen by Former Nigerian Dictator and His Associates", 4 May 2020, <https://www.justice.gov/opa/pr/us-repatriates-over-3117-million-assets-nigerian-people-were-stolen-former-nigerian-dictator>.

4.2.3 Procedural path and operative decisions

1. In **2014**, Judge John D. Bates in the U.S. District Court for the District of Columbia entered judgment forfeiting roughly **USD 500 million** located in accounts around the world.¹⁹
2. After U.S. appeals were exhausted in **2018**, Jersey enforced the U.S. judgment against more than **USD 308 million** located there.²⁰
3. On **3 February 2020**, the U.S., Nigeria, and Jersey executed a **trilateral repatriation agreement**.²¹
4. On **4 May 2020**, DOJ announced transfer of **USD 311,797,876.11** to Nigeria pursuant to that agreement.²²

4.2.4 Basis for return

Element	Legal basis
Forfeiture	2014 U.S. civil forfeiture judgment
Cross-border enforcement	Jersey enforcement of the U.S. judgment
Transfer abroad	2020 trilateral repatriation agreement

4.2.5 Use of returned assets / joint projects

DOJ's 2020 transfer release confirms the transfer followed the trilateral agreement and emphasizes the presence of **lawful process** and **transparency and accountability safeguards**.^{23 24} The case is especially useful when read together with later Abacha repatriation agreements, which made the infrastructure uses and monitoring architecture more explicit.

4.2.6 Why it matters for Ukraine

The practical lesson is not just “money was returned.” It is that **one state's forfeiture judgment can be enforced in another allied jurisdiction and then repatriated through a structured agreement**. That is directly relevant if Ukrainian-benefit assets are scattered across multiple partner states.

4.2.7 Verification note

- Forfeiture judgment basis verified: Yes
- Trilateral return instrument verified: Yes
- Exact project-level use in this tranche: less explicit in the DOJ summary than in later Nigeria return agreements

4.2.8 Sources

- DOJ trilateral agreement, 3 Feb 2020²⁵
- DOJ transfer announcement, 4 May 2020²⁶

¹⁹U.S. Department of Justice, “U.S. Enters into Trilateral Agreement with Nigeria and Jersey to Repatriate Over \$300 Million to Nigeria in Assets Stolen by Former Nigerian Dictator General Sani Abacha”, 3 Feb 2020, <https://www.justice.gov/archives/opa/pr/us-enters-trilateral-agreement-nigeria-and-jersey-repatriate-over-300-million-nigeria-assets>.

²⁰U.S. Department of Justice, “U.S. Enters into Trilateral Agreement with Nigeria and Jersey to Repatriate Over \$300 Million to Nigeria in Assets Stolen by Former Nigerian Dictator General Sani Abacha”, 3 Feb 2020, <https://www.justice.gov/archives/opa/pr/us-enters-trilateral-agreement-nigeria-and-jersey-repatriate-over-300-million-nigeria-assets>.

²¹U.S. Department of Justice, “U.S. Enters into Trilateral Agreement with Nigeria and Jersey to Repatriate Over \$300 Million to Nigeria in Assets Stolen by Former Nigerian Dictator General Sani Abacha”, 3 Feb 2020, <https://www.justice.gov/archives/opa/pr/us-enters-trilateral-agreement-nigeria-and-jersey-repatriate-over-300-million-nigeria-assets>.

²²U.S. Department of Justice, “U.S. Repatriates over \$311.7 Million in Assets to the Nigerian People that were Stolen by Former Nigerian Dictator and His Associates”, 4 May 2020, <https://www.justice.gov/opa/pr/us-repatriates-over-3117-million-assets-nigerian-people-were-stolen-former-nigerian-dictator>.

²³U.S. Department of Justice, “U.S. Enters into Trilateral Agreement with Nigeria and Jersey to Repatriate Over \$300 Million to Nigeria in Assets Stolen by Former Nigerian Dictator General Sani Abacha”, 3 Feb 2020, <https://www.justice.gov/archives/opa/pr/us-enters-trilateral-agreement-nigeria-and-jersey-repatriate-over-300-million-nigeria-assets>.

²⁴U.S. Department of Justice, “U.S. Repatriates over \$311.7 Million in Assets to the Nigerian People that were Stolen by Former Nigerian Dictator and His Associates”, 4 May 2020, <https://www.justice.gov/opa/pr/us-repatriates-over-3117-million-assets-nigerian-people-were-stolen-former-nigerian-dictator>.

²⁵U.S. Department of Justice, “U.S. Enters into Trilateral Agreement with Nigeria and Jersey to Repatriate Over \$300 Million to Nigeria in Assets Stolen by Former Nigerian Dictator General Sani Abacha”, 3 Feb 2020, <https://www.justice.gov/archives/opa/pr/us-enters-trilateral-agreement-nigeria-and-jersey-repatriate-over-300-million-nigeria-assets>.

²⁶U.S. Department of Justice, “U.S. Repatriates over \$311.7 Million in Assets to the Nigerian People that were Stolen by Former Nigerian Dictator and His Associates”, 4 May 2020, <https://www.justice.gov/opa/pr/us-repatriates-over-3117-million-assets-nigerian-people-were-stolen-former-nigerian-dictator>.

4.3 U.S. / UK -> Nigeria (Abacha, 2022 tranche)

4.3.1 Essence of the accusation

This is a second Abacha repatriation track involving the same larger kleptocracy allegations, but with additional assets located in the **United Kingdom** and recovered through cooperation in restraint and enforcement.²⁷²⁸

4.3.2 Parties

- **Forfeiting state:** United States
- **Supporting enforcement jurisdiction:** United Kingdom
- **Recipient:** Federal Republic of Nigeria
- **Project administrator:** Nigeria Sovereign Investment Authority (NSIA)

4.3.3 Procedural path and operative decisions

1. DOJ relied on the same **2014 D.D.C. forfeiture judgment** that had already produced the 2020 Jersey tranche.²⁹
2. The UK enforced the U.S. judgment against additional assets and cooperated in investigation and restraint.³⁰
3. On **23 August 2022**, the U.S. and Nigeria signed an agreement to repatriate over **USD 23 million**.³¹
4. On **17 November 2022**, DOJ announced the transfer of over **USD 20.6 million** in accordance with that agreement.³²

4.3.4 Basis for return

Element	Legal basis
Forfeiture	2014 U.S. civil forfeiture judgment
Cross-border enforcement	UK enforcement of U.S. judgment against assets located in the UK
Transfer abroad	2022 U.S.-Nigeria repatriation agreement

4.3.5 Use of returned assets / joint projects

The agreement directed the funds to three already authorized public infrastructure projects: the **Second Niger Bridge**, **Lagos-Ibadan Expressway**, and **Abuja-Kano road**. DOJ expressly noted administration by **NSIA**, review by an **independent auditor**, monitoring by an **independent civil society organization**, and a bar on use to benefit alleged perpetrators or pay contingency-fee lawyers.³³

4.3.6 Why it matters for Ukraine

This is a strong case for a Ukraine model because it shows how partner governments can convert a general “return the money” decision into a **project-specific public-benefit arrangement** with named projects, institutional administration, audit, and exclusions.

4.3.7 Verification note

- Agreement verified: Yes
- Transfer verified: Yes
- Use-of-funds restrictions verified: Yes

²⁷U.S. Department of Justice, “United States Enters into Agreement with Nigeria to Repatriate Over \$23 Million in Assets Stolen by Former Nigerian Dictator General Sani Abacha”, 23 Aug 2022, <https://www.justice.gov/opa/pr/united-states-enters-agreement-nigeria-repatriate-over-23-million-assets-stolen-former>.

²⁸U.S. Department of Justice, “United States Repatriates Over \$20 Million in Assets Stolen by Former Nigerian Dictator”, 17 Nov 2022, <https://www.justice.gov/archives/opa/pr/united-states-repatriates-over-20-million-assets-stolen-former-nigerian-dictator>.

²⁹U.S. Department of Justice, “United States Enters into Agreement with Nigeria to Repatriate Over \$23 Million in Assets Stolen by Former Nigerian Dictator General Sani Abacha”, 23 Aug 2022, <https://www.justice.gov/opa/pr/united-states-enters-agreement-nigeria-repatriate-over-23-million-assets-stolen-former>.

³⁰U.S. Department of Justice, “United States Enters into Agreement with Nigeria to Repatriate Over \$23 Million in Assets Stolen by Former Nigerian Dictator General Sani Abacha”, 23 Aug 2022, <https://www.justice.gov/opa/pr/united-states-enters-agreement-nigeria-repatriate-over-23-million-assets-stolen-former>.

³¹U.S. Department of Justice, “United States Enters into Agreement with Nigeria to Repatriate Over \$23 Million in Assets Stolen by Former Nigerian Dictator General Sani Abacha”, 23 Aug 2022, <https://www.justice.gov/opa/pr/united-states-enters-agreement-nigeria-repatriate-over-23-million-assets-stolen-former>.

³²U.S. Department of Justice, “United States Repatriates Over \$20 Million in Assets Stolen by Former Nigerian Dictator”, 17 Nov 2022, <https://www.justice.gov/archives/opa/pr/united-states-repatriates-over-20-million-assets-stolen-former-nigerian-dictator>.

³³U.S. Department of Justice, “United States Enters into Agreement with Nigeria to Repatriate Over \$23 Million in Assets Stolen by Former Nigerian Dictator General Sani Abacha”, 23 Aug 2022, <https://www.justice.gov/opa/pr/united-states-enters-agreement-nigeria-repatriate-over-23-million-assets-stolen-former>.

4.3.8 Sources

- DOJ agreement, 23 Aug 2022³⁴
- DOJ transfer, 17 Nov 2022³⁵

4.4 U.S. -> Nigeria (Alison-Madueke / Aluko-Omokore)

4.4.1 Essence of the accusation

According to DOJ, Nigerian businessmen **Kolawole Aluko** and **Olajide Omokore** conspired with others to pay bribes to former Nigerian Minister for Petroleum Resources **Diezani Alison-Madueke** from **2011 to 2015**. In return, Alison-Madueke allegedly steered lucrative oil contracts to companies linked to them. DOJ states that more than **USD 100 million** in proceeds was laundered into and through the United States and used to purchase luxury real estate and the yacht **Galactica Star**.³⁶

4.4.2 Parties

- **Forfeiting state:** United States
- **Recipient state:** Nigeria
- **Implementation vehicles:** World Bank trust fund and International Institute for Justice and the Rule of Law (IIJ)

4.4.3 Procedural path and operative decisions

1. U.S. authorities pursued forfeiture of assets tied to corruption, bribery, and money laundering involving the Nigerian oil sector.³⁷
2. Nigeria provided significant evidentiary and investigative assistance to the United States.³⁸
3. On **10 January 2025**, the U.S. entered into an agreement with Nigeria to transfer approximately **USD 52.88 million** in forfeited proceeds.³⁹

4.4.4 Basis for return

Element	Legal basis
Forfeiture	U.S. forfeiture proceedings arising from corruption and laundering
Transfer abroad	2025 U.S.-Nigeria transfer agreement
Authority to share	DOJ notes Attorney General may share successful forfeiture proceeds with foreign countries that participated in seizure or forfeiture, in coordination with Treasury and State

4.4.5 Use of returned assets / joint projects

The agreement is unusually useful because it split the funds into **two distinct public-benefit tracks**:

- **USD 50 million** for the **Distributed Access Through Renewable Energy Scale-Up** project, through a **World Bank trust fund** and Rural Electrification Agency implementation;
- about **USD 2.88 million** for Nigeria’s contribution to the **International Institute for Justice and the Rule of Law**, supporting regional criminal-justice and counter-terrorism capacity-building.⁴⁰

The agreement also included **World Bank oversight controls, auditing, publication requirements, external auditing, periodic progress reporting, and public reporting**.⁴¹

³⁴U.S. Department of Justice, “United States Enters into Agreement with Nigeria to Repatriate Over \$23 Million in Assets Stolen by Former Nigerian Dictator General Sani Abacha”, 23 Aug 2022, <https://www.justice.gov/opa/pr/united-states-enters-agreement-nigeria-repatriate-over-23-million-assets-stolen-former>.

³⁵U.S. Department of Justice, “United States Repatriates Over \$20 Million in Assets Stolen by Former Nigerian Dictator”, 17 Nov 2022, <https://www.justice.gov/archives/opa/pr/united-states-repatriates-over-20-million-assets-stolen-former-nigerian-dictator>.

³⁶U.S. Department of Justice, “United States Enters into Agreement with Nigeria to Transfer \$52.88M in Forfeited Corruption Proceeds for Uses to Benefit the Nigerian People”, 10 Jan 2025, <https://www.justice.gov/archives/opa/pr/united-states-enters-agreement-nigeria-transfer-5288m-forfeited-corruption-proceeds-uses>.

³⁷U.S. Department of Justice, “United States Enters into Agreement with Nigeria to Transfer \$52.88M in Forfeited Corruption Proceeds for Uses to Benefit the Nigerian People”, 10 Jan 2025, <https://www.justice.gov/archives/opa/pr/united-states-enters-agreement-nigeria-transfer-5288m-forfeited-corruption-proceeds-uses>.

³⁸U.S. Department of Justice, “United States Enters into Agreement with Nigeria to Transfer \$52.88M in Forfeited Corruption Proceeds for Uses to Benefit the Nigerian People”, 10 Jan 2025, <https://www.justice.gov/archives/opa/pr/united-states-enters-agreement-nigeria-transfer-5288m-forfeited-corruption-proceeds-uses>.

³⁹U.S. Department of Justice, “United States Enters into Agreement with Nigeria to Transfer \$52.88M in Forfeited Corruption Proceeds for Uses to Benefit the Nigerian People”, 10 Jan 2025, <https://www.justice.gov/archives/opa/pr/united-states-enters-agreement-nigeria-transfer-5288m-forfeited-corruption-proceeds-uses>.

⁴⁰U.S. Department of Justice, “United States Enters into Agreement with Nigeria to Transfer \$52.88M in Forfeited Corruption Proceeds for Uses to Benefit the Nigerian People”, 10 Jan 2025, <https://www.justice.gov/archives/opa/pr/united-states-enters-agreement-nigeria-transfer-5288m-forfeited-corruption-proceeds-uses>.

⁴¹U.S. Department of Justice, “United States Enters into Agreement with Nigeria to Transfer \$52.88M in Forfeited Corruption Proceeds for Uses

4.4.6 Why it matters for Ukraine

This is one of the best current analogues for Ukraine because it demonstrates a **split-beneficiary architecture**: part of the return can go to infrastructure or recovery spending and part can reinforce rule-of-law or security institutions. That is closer to Ukraine's likely needs than a single unrestricted transfer.

4.4.7 Verification note

- Agreement verified: Yes
- End-use and oversight details verified: Yes
- Judicial source gap: underlying forfeiture filings should still be added in a later annex

4.4.8 Sources

- DOJ agreement, 10 Jan 2025⁴²

4.5 Jersey -> Kenya (Windward / Gichuru-Okemo)

4.5.1 Essence of the accusation

The Jersey proceedings concerned **Windward Trading Limited**, whose beneficial owner was **Samuel Gichuru**, then chief executive of Kenya Power and Lighting Company. Jersey states the company admitted laundering proceeds of corruption linked to valuable Kenyan contracts, with the case also involving former Kenyan Energy Minister **Chrysanthus Okemo** in connected extradition efforts.^{43 44 45}

4.5.2 Parties

- **Confiscating jurisdiction:** Jersey
- **Recipient:** Kenya
- **Framework partners:** Jersey, Kenya, United Kingdom, Switzerland under FRACCK

4.5.3 Procedural path and operative decisions

1. On **24 February 2016**, Windward pleaded guilty before the Royal Court of Jersey and the court imposed a confiscation order of **GBP 3,281,897.40 and USD 540,330.69**.⁴⁶
2. On **3 March 2017**, Jersey and Kenya signed an agreement paving the way for return of over **GBP 3 million**.⁴⁷
3. In **December 2018**, Jersey signed the **Framework for Return of Assets from Corruption and Crime to Kenya (FRACCK)**, a multilateral framework also involving the UK and Switzerland.⁴⁸
4. On **28 March 2022**, Jersey and Kenya signed an **Asset Recovery Agreement** enabling the first return under FRACCK, with **GBP 3 million** to support Kenya's response to COVID-19.⁴⁹

4.5.4 Basis for return

Element	Legal basis
Confiscation	Royal Court confiscation order after criminal conviction
Transfer abroad	2017 bilateral return step; FRACCK framework; 2022 Asset Recovery Agreement
Restrictions on use	Development and public-benefit objectives under FRACCK; Kenya-defined projects agreed with partners

to Benefit the Nigerian People", 10 Jan 2025, <https://www.justice.gov/archives/opa/pr/united-states-enters-agreement-nigeria-transfer-5288m-forfeited-corruption-proceeds-uses>.

⁴²U.S. Department of Justice, "United States Enters into Agreement with Nigeria to Transfer \$52.88M in Forfeited Corruption Proceeds for Uses to Benefit the Nigerian People", 10 Jan 2025, <https://www.justice.gov/archives/opa/pr/united-states-enters-agreement-nigeria-transfer-5288m-forfeited-corruption-proceeds-uses>.

⁴³Government of Jersey, "Jersey confiscates £3.6 million proceeds of corruption", 25 Feb 2016, <https://www.gov.je/News/2016/pages/jersey-confiscates-proceeds-of-corruption.aspx>.

⁴⁴Government of Jersey, "Chief Minister signs agreement with Kenya", 6 Mar 2017, <https://www.gov.je/News/2017/pages/kenyaassetsharing.aspx>.

⁴⁵Government of Jersey, "Jersey and Kenya sign historic Asset Recovery Agreement", 28 Mar 2022, <https://www.gov.je/News/2022/pages/jerseykenyacovid-19.aspx>.

⁴⁶Government of Jersey, "Jersey confiscates £3.6 million proceeds of corruption", 25 Feb 2016, <https://www.gov.je/News/2016/pages/jersey-confiscates-proceeds-of-corruption.aspx>.

⁴⁷Government of Jersey, "Chief Minister signs agreement with Kenya", 6 Mar 2017, <https://www.gov.je/News/2017/pages/kenyaassetsharing.aspx>.

⁴⁸Government of Jersey, "Confiscated funds to return to Kenya", 12 Dec 2018, <https://www.gov.je/news/2018/pages/kenyafunds.aspx>.

⁴⁹Government of Jersey, "Jersey and Kenya sign historic Asset Recovery Agreement", 28 Mar 2022, <https://www.gov.je/News/2022/pages/jerseykenyacovid-19.aspx>.

4.5.5 Use of returned assets / joint projects

The 2022 Jersey statement says the return would support Kenya’s **COVID-19 response**, while the FRACCK framework required returned assets to be used for **clearly identified development objectives** that benefit the Kenyan people and support **Vision 2030**.⁵⁰⁵¹

4.5.6 Why it matters for Ukraine

This is important because it shows how a return framework can exist **before** a particular transfer is finalized. For Ukraine, a standing framework among partner states could reduce the need to renegotiate principles in each case.

4.5.7 Verification note

- Confiscation verified: Yes
- Framework agreement verified: Yes
- First return under framework verified: Yes

4.5.8 Sources

- Jersey confiscation, 25 Feb 2016⁵²
- Jersey-Kenya agreement, 6 Mar 2017⁵³
- FRACCK / Kenya funds, 12 Dec 2018⁵⁴
- Asset Recovery Agreement, 28 Mar 2022⁵⁵

4.6 Jersey -> Mozambique (Fragoso)

4.6.1 Essence of the accusation

Jersey’s 2024 statement explains that the returned funds were linked to **Carlos Fragoso**, a Mozambican official who had held senior roads and bridge positions. The funds were held in a Jersey trust and treated as tainted property derived from **bribes paid to secure construction contracts in Mozambique**.⁵⁶

4.6.2 Parties

- **Confiscating jurisdiction:** Jersey
- **Recipient:** Republic of Mozambique

4.6.3 Procedural path and operative decisions

1. Jersey had previously litigated related trust issues and identified earlier deceptive source-of-income representations.⁵⁷
2. Following cooperation from Mozambican authorities, Jersey’s Economic Crime and Confiscation Unit used the **Forfeiture of Assets (Civil Proceedings) (Jersey) Law 2018** to obtain forfeiture of funds held in the Tolvex Trust.⁵⁸
3. On **7 May 2024**, Jersey and Mozambique signed a **Memorandum of Understanding** returning over **GBP 829,500**.⁵⁹

4.6.4 Basis for return

Element	Legal basis
Forfeiture	Jersey civil forfeiture under the 2018 law
Transfer abroad	2024 Jersey-Mozambique Memorandum of Understanding
Restrictions on use	Funds earmarked for financial-crime and asset-recovery institutions and training

⁵⁰Government of Jersey, “Confiscated funds to return to Kenya”, 12 Dec 2018, <https://www.gov.je/news/2018/pages/kenyafunds.aspx>.

⁵¹Government of Jersey, “Jersey and Kenya sign historic Asset Recovery Agreement”, 28 Mar 2022, <https://www.gov.je/News/2022/pages/jerseykenyacovid-19.aspx>.

⁵²Government of Jersey, “Jersey confiscates £3.6 million proceeds of corruption”, 25 Feb 2016, <https://www.gov.je/News/2016/pages/jersey-confiscates-proceeds-of-corruption.aspx>.

⁵³Government of Jersey, “Chief Minister signs agreement with Kenya”, 6 Mar 2017, <https://www.gov.je/News/2017/pages/kenyaassetsharing.aspx>.

⁵⁴Government of Jersey, “Confiscated funds to return to Kenya”, 12 Dec 2018, <https://www.gov.je/news/2018/pages/kenyafunds.aspx>.

⁵⁵Government of Jersey, “Jersey and Kenya sign historic Asset Recovery Agreement”, 28 Mar 2022, <https://www.gov.je/News/2022/pages/jerseykenyacovid-19.aspx>.

⁵⁶Government of Jersey, “Return of £829,500 to Republic of Mozambique confirmed”, 7 May 2024, <https://www.gov.je/News/2024/Pages/AssetReturnArrangementRepublicOfMozambique.aspx>.

⁵⁷Government of Jersey, “Return of £829,500 to Republic of Mozambique confirmed”, 7 May 2024, <https://www.gov.je/News/2024/Pages/AssetReturnArrangementRepublicOfMozambique.aspx>.

⁵⁸Government of Jersey, “Return of £829,500 to Republic of Mozambique confirmed”, 7 May 2024, <https://www.gov.je/News/2024/Pages/AssetReturnArrangementRepublicOfMozambique.aspx>.

⁵⁹Government of Jersey, “Return of £829,500 to Republic of Mozambique confirmed”, 7 May 2024, <https://www.gov.je/News/2024/Pages/AssetReturnArrangementRepublicOfMozambique.aspx>.

4.6.5 Use of returned assets / joint projects

The MoU earmarked most of the funds to support Mozambique's **Central Office for Asset Recovery**, **Central Office for Combatting Corruption**, **Asset Management Office**, Attorney General's Office, and National Criminal Investigation Service. The package also funded a five-day training course on **international and judicial cooperation in criminal matters** for trainees from all eleven provinces.⁶⁰

4.6.6 Why it matters for Ukraine

This case is smaller than the others, but it is analytically strong because it treats returned assets as a tool to build **state recovery capacity itself**. That is useful if some Ukraine-bound returns are directed to anti-corruption, asset-management, or prosecutorial capacity rather than only reconstruction projects.

4.6.7 Verification note

- Forfeiture basis verified: Yes
- Return instrument verified: Yes
- End-use detail verified: Yes

4.6.8 Sources

- Jersey-Mozambique asset return arrangement, 7 May 2024⁶¹

4.7 U.S. -> Kyrgyz Republic (Bakiyev)

4.7.1 Essence of the accusation

DOJ tied the returned funds to corruption and theft of government funds by the prior regime of **Kurmanbek Bakiyev** and his son **Maxim Bakiyev**. The assets were identified in the United States through a criminal prosecution of **Eugene Gourevitch** for insider trading, after which a **USD 6 million forfeiture order** was entered.⁶²

4.7.2 Parties

- **Forfeiting state:** United States
- **Recipient:** Government of the Kyrgyz Republic
- **Claim vehicle:** Petition for remission filed by Kyrgyz authorities

4.7.3 Procedural path and operative decisions

1. In the Eastern District of New York prosecution of Eugene Gourevitch, the court entered a **USD 6 million forfeiture order**.⁶³
2. The Kyrgyz government filed a **petition for remission** with DOJ MLARS claiming the forfeited funds traced back to monies stolen by Maxim Bakiyev from Kyrgyz state authorities and other banking institutions.⁶⁴
3. DOJ granted the remission petition on **4 October 2018**.⁶⁵
4. On **26 February 2019**, DOJ announced repatriation of approximately **USD 4.5 million** collected so far, with additional efforts to locate the remainder.⁶⁶

4.7.4 Basis for return

Element	Legal basis
Forfeiture	U.S. criminal forfeiture order
Transfer abroad	DOJ remission process following foreign-state petition
Restrictions on use	Jointly announced public-benefit uses focused on social and anti-corruption projects

⁶⁰Government of Jersey, "Return of £829,500 to Republic of Mozambique confirmed", 7 May 2024, <https://www.gov.je/News/2024/Pages/AssetReturnArrangementRepublicOfMozambique.aspx>.

⁶¹Government of Jersey, "Return of £829,500 to Republic of Mozambique confirmed", 7 May 2024, <https://www.gov.je/News/2024/Pages/AssetReturnArrangementRepublicOfMozambique.aspx>.

⁶²U.S. Department of Justice, "Justice Department Repatriates Forfeited Funds to the Government of the Kyrgyz Republic", 26 Feb 2019, <https://www.justice.gov/opa/pr/justice-department-repatriates-forfeited-funds-government-kyrgyz-republic>.

⁶³U.S. Department of Justice, "Justice Department Repatriates Forfeited Funds to the Government of the Kyrgyz Republic", 26 Feb 2019, <https://www.justice.gov/opa/pr/justice-department-repatriates-forfeited-funds-government-kyrgyz-republic>.

⁶⁴U.S. Department of Justice, "Justice Department Repatriates Forfeited Funds to the Government of the Kyrgyz Republic", 26 Feb 2019, <https://www.justice.gov/opa/pr/justice-department-repatriates-forfeited-funds-government-kyrgyz-republic>.

⁶⁵U.S. Department of Justice, "Justice Department Repatriates Forfeited Funds to the Government of the Kyrgyz Republic", 26 Feb 2019, <https://www.justice.gov/opa/pr/justice-department-repatriates-forfeited-funds-government-kyrgyz-republic>.

⁶⁶U.S. Department of Justice, "Justice Department Repatriates Forfeited Funds to the Government of the Kyrgyz Republic", 26 Feb 2019, <https://www.justice.gov/opa/pr/justice-department-repatriates-forfeited-funds-government-kyrgyz-republic>.

4.7.5 Use of returned assets / joint projects

DOJ and the Kyrgyz government stated the funds would be used for:

- healthcare access in rural areas through medical equipment;
- water-supply facilities and drinking-water systems;
- anti-corruption institutions and transparency of court proceedings.⁶⁷

4.7.6 Why it matters for Ukraine

This case is important because it shows a different route from bilateral restitution agreements: a **foreign state petitioning for remission** out of a U.S. forfeiture case. It may not be the central Ukraine model, but it shows another legal mechanism for directing forfeited value back to a harmed state.

4.7.7 Verification note

- Forfeiture order basis verified: Yes
- Remission decision verified: Yes
- Public-benefit commitments verified: Yes

4.7.8 Sources

- DOJ repatriation, 26 Feb 2019⁶⁸

5 Preliminary Comparative Lessons For Ukraine

5.1 1. Confiscation is usually necessary but not sufficient

In almost all useful cases, the judicial forfeiture or confiscation step **did not itself settle destination and use**. A second step was required: a bilateral agreement, a trilateral agreement, a trust-fund instrument, or a remission decision.

5.2 2. The politically safest route is not a simple treasury transfer

The most transferable models for Ukraine are the ones that route funds through:

- a **UN trust fund**;
- a **World Bank trust fund**;
- a **state project vehicle with external audit**;
- a **framework agreement with predefined safeguards**.

That pattern appears in the Uzbekistan, Nigeria-2022, and Nigeria-2025 cases.

5.3 3. Monitoring architecture is not cosmetic

Monitoring is often what makes return politically acceptable. The recurring mechanisms are:

- independent audit;
- public reporting;
- external implementation controls;
- civil-society monitoring;
- project earmarking;
- prohibition on benefit to perpetrators or related persons.

Ukraine-facing work should therefore treat monitoring as part of the legal design, not an afterthought.

5.4 4. Multi-state enforcement matters

The Abacha 2020 and 2022 tranches are especially relevant because they show how a forfeiture judgment from one state can be **enforced against assets located in another jurisdiction** and only then transferred onward. That is likely to matter in any serious Ukraine asset-recovery pipeline.

5.5 5. A future Ukraine model may need more than one destination channel

The January 10, 2025 U.S.-Nigeria agreement is particularly instructive because it split the assets between:

⁶⁷U.S. Department of Justice, “Justice Department Repatriates Forfeited Funds to the Government of the Kyrgyz Republic”, 26 Feb 2019, <https://www.justice.gov/opa/pr/justice-department-repatriates-forfeited-funds-government-kyrgyz-republic>.

⁶⁸U.S. Department of Justice, “Justice Department Repatriates Forfeited Funds to the Government of the Kyrgyz Republic”, 26 Feb 2019, <https://www.justice.gov/opa/pr/justice-department-repatriates-forfeited-funds-government-kyrgyz-republic>.

- a recovery-style public project channel; and
- a rule-of-law / security-capacity channel.

That may be a better template for Ukraine than a one-bucket structure.

6 Tentative Conclusion

At this stage, the strongest new cases for a Ukraine-oriented final note are:

1. **Switzerland -> Uzbekistan (Karimova)** for the UN trust-fund model;
2. **U.S. -> Nigeria (Alison-Madueke / Aluko-Omokore)** for a split architecture combining infrastructure-type spending and institutional capacity-building;
3. **U.S. / UK -> Nigeria (Abacha, 2022 tranche)** for project-specific safeguards after cross-border enforcement;
4. **Jersey -> Kenya (Windward / FRACCK)** for a standing framework model;
5. **U.S. -> Kyrgyz Republic (Bakiyev)** for the remission route;
6. **Jersey -> Mozambique (Fragoso)** for anti-corruption institution-building as an end use.

The emerging lesson is that a plausible Ukraine model will likely require:

- finalized confiscation in the holding state;
- a separate interstate allocation instrument;
- a protected beneficiary vehicle;
- strong monitoring and public reporting;
- and, in some cases, a split between reconstruction uses and institutional rule-of-law uses.

7 Sources